

Shri Krishna Kumar Sharma v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Others

High Court of Judicature at Allahabad · Division Bench · 22 October 2018 (order-sheet 12.10.2012 to 22.10.2018) · WRIT - C No. 53740 of 2012 · **Petition not entertained and consigned to record (22.10.2018): the provisional-assessment power vests in the Executive Engineer and the Assistant Engineer (Revenue) proposal is only a calculation sheet; the petitioner is left to raise his objection before the Executive Engineer.**

Source file: WRIC(A)_53740_2012.pdf

HEADNOTE

Order-sheet culminating in a refusal to entertain a challenge to a proposed assessment at the calculation-sheet stage. The petitioner challenged a proposed assessment notice on the ground that the Assistant Engineer (Revenue) could not have issued it and that the consequential notice of the Executive Engineer was therefore bad in law, relying on a State Government notification empowering the Executive Engineer to carry out assessment proceedings. Recovery had been protected by an interim order dated 12 October 2012 restraining the Executive Engineer from making a final assessment pursuant to the provisional assessment dated 8 December 2011. Disposing of the writ on 22 October 2018, the Division Bench (Amreshwar Pratap Sahi and Harsh Kumar, JJ.) held that under the provisions of the U.P. Electricity Supply Code, 2005 there is no doubt that the power to carry out provisional assessment vests in the Executive Engineer concerned, and that the proposal for the assessed amount issued by the Assistant Engineer (Revenue) on behalf of the Executive Engineer is only a calculation sheet intended to call upon the petitioner to file his response - not the assessment itself. The 'wrong officer / bad in law' challenge therefore failed. The Court declined to entertain the petition on the arguments advanced, left it open to the petitioner to raise his objection, if any, before the Executive Engineer himself, and consigned the petition to record.

FACTUAL SUMMARY

Shri Krishna Kumar Sharma, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., filed Writ-C No.53740 of 2012 before the Allahabad High Court challenging assessment proceedings. A provisional assessment dated 8 December 2011 had been made, to be followed by a final assessment. By an interim order dated 12 October 2012 the Division Bench (Satya Poot Mehrotra and Het Singh Yadav, JJ.) directed that, till the next date, the Executive Engineer (respondent no.2) would not make the final assessment pursuant to that provisional assessment if not already done; the interim order was continued through numerous listings before several Benches from 2012 to 2018. The petitioner's substantive challenge, as recorded on 22 October 2018, was that the Assistant Engineer (Revenue) could not have issued the proposed assessment notice, so that the consequential notice issued by the Executive Engineer was bad in law; for this he relied on the State Government notification empowering the Executive Engineer to carry out the assessment proceedings. On 22 October 2018 the Division Bench (Amreshwar Pratap Sahi and Harsh Kumar, JJ.) heard counsel for both sides and disposed of the writ, holding that the calculation sheet issued by the Assistant Engineer (Revenue) on behalf of the Executive Engineer was not the assessment and that the assessment power vests in the Executive Engineer; it relegated the petitioner to raise his objection before the Executive Engineer and consigned the petition to record.

REUSABLE CONSTRUCTIONS

1. Under the U.P. Electricity Supply Code, 2005 the power to carry out a provisional assessment vests in the Executive Engineer concerned; a 'proposal for the assessed amount' issued by the Assistant Engineer (Revenue) on behalf of the Executive Engineer is only a calculation sheet intended to call for the consumer's response, and not the assessment itself. **order of 22.10.2018**
2. A challenge that the assessment notice was issued by the wrong officer (the Assistant Engineer, Revenue rather than the Executive Engineer) and is bad in law fails where the document is only such a calculation sheet issued on behalf of the Executive Engineer, in whom the assessment power vests. **order of 22.10.2018**
3. The writ court will not entertain a challenge at the stage of the calculation sheet / proposed assessment; the consumer is left to raise his objection before the Executive Engineer, and the petition is consigned to record. **order of 22.10.2018**

INTERPLAY · EA2003::126**RATIO**

The power to make a provisional assessment vests in the Executive Engineer; a proposal for the assessed amount issued by the Assistant Engineer (Revenue) on his behalf is only a calculation sheet, not the assessment, so the 'wrong officer' challenge fails

QUESTION

Where a consumer challenges a proposed assessment notice on the ground that it was issued by the Assistant Engineer (Revenue) rather than the Executive Engineer, and is therefore bad in law, is the notice vitiated by want of authority?

HOLDING

No. Under the provisions of the U.P. Electricity Supply Code, 2005 there is no doubt that the power to carry out provisional assessment vests in the Executive Engineer concerned. The proposal for the assessed amount issued by the Assistant Engineer, Revenue on behalf of the Executive Engineer is only a calculation sheet, intended to call upon the petitioner to file his response; it is not itself the assessment. The petitioner's contention - that the Assistant Engineer, Revenue could not have issued the notice and that the consequential notice of the Executive Engineer was bad in law, resting on the State Government notification empowering the Executive Engineer - was therefore not accepted.

order of 22.10.2018

EVIDENCE "According to the provisions of the U.P. Electricity Supply Code, 2005 there is no doubt that the power to carry out provisional assessment vests in the Executive Engineer concerned." order of 22.10.2018

EVIDENCE "The proposal for the assessed amount issued by the Assistant Engineer, Revenue on behalf of Executive Engineer is only a calculation sheet which is intended for the purpose of calling upon the petitioner to file his response to the same." order of 22.10.2018

FLAG Order-sheet of 14 pages, dated orders from 12.10.2012 to the operative disposal of 22.10.2018, no printed page numbers; pins are order dates. The provisional/final assessment scheme is reflected in the interim order's 'Provisional Assessment (8.12.2011)' / 'Final Assessment' language; the Court grounded the Executive Engineer's power in the U.P. Electricity Supply Code, 2005 and the cited State notification.

HOLDING-UNIT · EA2003::126**RATIO**

A writ at the calculation-sheet / proposed-assessment stage is not entertained; the consumer is relegated to raise his objection before the Executive Engineer, the calculation sheet being only a call for his response

QUESTION

Should the writ court entertain a challenge to the assessment at the stage of the calculation sheet / proposed assessment, or relegate the consumer to file his objection before the Executive Engineer?

HOLDING

The writ is not entertained at that stage. Since the calculation sheet is only intended to call upon the petitioner to file his response, the Court was not inclined to entertain the petition on the arguments advanced, and left it open to the petitioner to raise his objection, if any, before the Executive Engineer himself; the petition was consigned to record. The interim order dated 12.10.2012 restraining the Executive Engineer from making a final assessment pursuant to the provisional assessment dated 8.12.2011 thus lapsed with the disposal, the objection stage before the Executive Engineer remaining open to the petitioner. order of 22.10.2018

EVIDENCE "Having considered the same, we are not inclined to entertain this petition on the arguments so advanced leaving it open to the petitioner to raise his objection, if any, before the Executive Engineer himself." order of 22.10.2018

EVIDENCE "Accordingly, the petition is consigned to record." order of 22.10.2018

PRINCIPLE TAGS

provisional-assessment-power-vests-in-executive-engineer Under the Supply Code, 2005 the Executive Engineer holds the provisional-assessment power; an Assistant Engineer (Revenue) calculation sheet issued on the EE's behalf is not the assessment, so a 'wrong officer' / bad in law' challenge fails. order of 22.10.2018

no-writ-at-calculation-sheet-stage-raise-objection-before-ee A writ at the proposed-assessment / calculation-sheet stage is not entertained; the consumer is relegated to file objection before the Executive Engineer, the calculation sheet being only a call for his response. Same objection-stage / relegation line as SCJ-1270, SCJ-1271, SCJ-032. order of 22.10.2018

NOT DECIDED — THE MERITS AND QUANTUM OF THE PROPOSED PROVISIONAL ASSESSMENT (DATED 8.12.2011)

Not decided; left to be raised by way of objection before the Executive Engineer, the petition being consigned to record.
[order of 22.10.2018](#)

NOT DECIDED — THE EFFECT OF THE STATE GOVERNMENT NOTIFICATION EMPOWERING THE EXECUTIVE ENGINEER TO CARRY OUT ASSESSMENT PROCEEDINGS

Noted as the basis of the petitioner's argument but not adjudicated as vitiating the notice; the Court held the calculation sheet was issued on behalf of the Executive Engineer, in whom the assessment power vests. [order of 22.10.2018](#)

RELATED CASES — SEE ALSO

SCJ-1270 — Companion Allahabad order-sheet on the provisional-assessment / objection scheme, where an unobjected provisional assessment made recovery valid and the assessee was relegated to the Section 127 appeal - the same relegation-to-the-objection/appeal process as here.

SCJ-1271 — Provisional and final assessment cannot be made simultaneously; a 'final' assessment made without an objection opportunity is treated as provisional and the meter-holder allowed to object - the objection-before-the-authority stage the petitioner is relegated to here.

SCJ-032 — Section 126(3) requires an opportunity to object to the provisional assessment before a final assessment - the objection stage before the Executive Engineer kept open here.

SCJ-898 — A final Section 126(3) assessment is mandatory before recovery and the objection stage cannot be collapsed - consistent with relegating the consumer to object before the Executive Engineer rather than deciding the assessment in writ.

SCJ-1564 — Companion order-sheet (this corpus) in which recovery/final assessment was restrained by interim order pending an assessment-calculation challenge - a like interim-restraint-then-objection posture at the provisional stage.